

24VECV04401 24VECV04401

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-13

Motion: PLAINTIFF'S MOTION FOR TERMINATING SANCTIONS

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Case Number: 24VECV04401 Hearing Date: July 13, 2026 Dept: I

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

ORANGE TEAM OF LOS ANGELES, INC.,

Plaintiff,

vs.

EDEN SHAR; and DOES 1 to 20, inclusive,

Defendants.

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CASE

NO: 24VECV04401

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION FOR TERMINATING SANCTIONS

Dept.

I

HEARING

DATE: JULY 13, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: SEPTEMBER 12, 2024

TRIAL

DATE: NONE

I. BACKGROUND

On September 12, 2024, Plaintiff Orange Team of Los Angeles ("Plaintiff") filed a complaint against Defendants Eden Shar ("Shar") and Does 1 to 20 alleging four causes of action: (1) open book account; (2) account stated; (3) reasonable value; and (4) breach of written contract.

On May 2, 2025, Shar filed a cross-complaint against Cross-Defendants Ironside Claims LLC ("Ironside Claims"), Anssi Viljanen ("Viljanen") General Insurance Company of America ("General Insurance"), and Roes 1 to 15 alleging six causes of action: (1) negligence; (2) breach of contract; (3) breach of implied covenant of good faith and fair dealing; (4) indemnification; (5) apportionment of responsibility; and (6) declaratory relief.

On June 10, 2026, Plaintiff filed the instant motion for terminating sanctions.

To date, the motion remains unopposed.

II. LEGAL STANDARD

Cal. Code of Civ. Proc. § 2023.030 permits the Court, in its discretion, to impose the following types of terminating sanctions against anyone engaging in conduct that is a "misuse of the discovery process":

(1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process.

(2) An order staying further proceedings by that party until an order for discovery is obeyed.

(3) An order dismissing the action, or any part of the action, of that party.

(4) An order rendering a judgment by default against that party.

(CCP § 2023.030(d).)

Conduct that is a “misuse of the discovery process” includes failing to respond or to submit to an authorized method of discovery and disobeying a court order to provide discovery. (CCP § 2023.010(d) and (g).) “Imposition of sanctions for misuse of discovery lies within the trial court’s discretion, and is reviewed only for abuse.” (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 991.) “The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery[.]” (Ibid. at 992.) Sanctions should be tailored to the harm created by the withheld discovery and should not be used as punishment. (Ibid.) The court should also consider whether the discovery misconduct was “willful” and whether the requesting party was prejudiced by the other’s failure to comply. (Do It Urself Moving & Storage, Inc. v. Brown, Leifer, Slatkin & Berns (1992) 7 Cal.App.4th 27, 37.) Courts have held that terminating sanctions are warranted when a party repeatedly fails to propound adequate discovery responses, even after the court imposed monetary sanctions. (Liberty Mutual Fire Ins. Co. v. LcL Administrations, Inc. (2008) 163 Cal.App.4th 1093.) For example, in Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, the Court of Appeal held that five motions to compel created a record “replete with evidence of [appellant’s] failures to answer discovery requests.” (Ibid. at 279–280.)

III.

DISCUSSION

Plaintiff

makes this motion on the grounds that Shar failed to comply with the Court’s October 23, 2025, orders to serve responses to Plaintiff’s discovery requests, failed to pay ordered sanctions, failed to respond to the Court’s Issue Sanctions order, and failed to pay further monetary sanctions within 20 days of the Court’s March 20, 2026, Order. (Motion at p. 2.)

On

May 14, 2025, Plaintiff served its discovery requests on Shar. (Motion at 2:3-8.) Shar failed to respond and, on October 23, 2025, the Court granted Plaintiff's motion to compel responses. (Id. at 9-20.) Notably, Shar did not oppose the motions or otherwise participate in the hearings. (Ibid.) By January 2026, Shar had not served discovery responses or paid sanctions as ordered. (Id. at 3:25-4:8.) On March 20, 2026, the Court granted Plaintiff's motion for issue and monetary sanctions for Shar's failure to comply with prior Court orders. (Id. at 3:6-22.) To date, Shar has failed to pay sanctions as ordered by the Court on March 20, 2026. (Ibid.)

Based

on the foregoing, the Court finds Shar has created a record "replete with evidence of [her] failure to answer discovery requests" or otherwise participate in litigation. (Mileikowsky, supra, 128 Cal.App.4th at 279-280.) "A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing [terminating sanctions]." (Ibid.) Here, less severe sanctions have not produced Shar's compliance.

Accordingly,

the instant motion is granted. Shar's answer is struck and her default entered.

Additionally,

sanctions are awarded against Shar and her counsel, jointly and severally, in the amount of \$2,275.00 (representing 3.5 hours of attorney work at an hourly rate of \$650.00). (See Lensky Decl. at ¶ 17.)

IV.

CONCLUSION

Based

on the foregoing, Plaintiff's motion for terminating sanctions against Defendant Eden Shar is GRANTED.

Eden

Shar's answer is struck and her default entered.

Shar

and her counsel, jointly and severally, are to pay Plaintiff's counsel additional monetary sanctions in the amount of \$2,275.00 within 20 days of this order.

Moving

party is ordered to give notice.

Dated: July____,

2026

Hon. Karen Moskowitz

Judge of the Superior Court